

The provenance question, assessed from the Regulator's side

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1. The asymmetry that governs everything

The Regulator knows the answer. It knows whether an external provider was engaged in connection with review 69983, by whom, and under what arrangement. The Appellant does not, and cannot find out from the artefacts. **Every assessment below turns on which of three states of the world is true, and only the Regulator knows which.**

If the truth is...	The Regulator's exposure	The Regulator's posture
A. No external provider was engaged. The DMS profile has some other explanation - the file passed through the firm on some other footing.	Nil. One sentence disposes of it. The Appellant is left having implied something that is not so, on the record.	Answer plainly and early. Invite the question. The answer is free and it closes a line of attack permanently.
B. An engagement existed, procured through a whole-of-government panel, properly authorised, the Regulator instructing.	Low, and legal exposure nil. Receiving drafting assistance is orthodox. The delegate signed; s 329 is satisfied on the face. Mild institutional embarrassment only.	Answer if asked directly, in writing, in neutral terms. Do not volunteer. There is nothing to concede because nothing was done wrong.
C. An engagement existed on a footing that is awkward - a provider also acting in the insurer's interest, or an arrangement not disclosed, or structured below the \$10,000 publication threshold.	Material, and it is not legal - it is institutional. The exposure is a public transcript, a precedent for every other appellant to ask the same question, and scrutiny of procurement practice. None of it decides this appeal.	Resist ventilation at hearing on relevance. Answer correspondence at the highest level of generality consistent with accuracy. Settle if the cost of settling is lower than the cost of the question being asked in open session.

The Regulator's silence is therefore not evidence of scenario C. A body in scenario B has no reason to volunteer an answer to a question nobody has formally put, and a body in scenario A has no reason to answer a question that has not been asked either. Only a direct, answerable question discriminates between the three.

2. How the question could actually reach the hearing, and what happens to it

Route	What the Regulator does	Outcome
Tendering the document properties as an exhibit	Objection: relevance. The appeal is de novo under s 550(4). The manner in which the reasons below were produced is not a fact in issue in determining whether the Appellant sustained an injury under s 32.	Objection almost certainly upheld. The metadata is not probative of any element.
Cross-examination of a Regulator witness	The Regulator is unlikely to call a witness to whom the question could be put. The review decision is a document; it proves itself. There may be no witness available to cross-examine on its production at all.	No vehicle. The question needs a witness and there may not be one.
Submissions	Object, or simply respond that it goes to no issue and invite the Commission to decide the matter on the evidence.	Rejected as a ground. There is no ground for it to attach to.
Correspondence before hearing	Answer, decline, or answer at a level of generality. Whatever is written becomes a record.	The only route that produces anything. An answer closes it; a refusal in writing is itself a document.

3. What the Regulator would want the Appellant to do

Assessed candidly from the other side of the table, an experienced appeals officer would not fear this line. She would prefer it were run, for four reasons:

(a) It is a relevance objection she wins, in front of the Commissioner, early, and it sets the tone for everything after it.

(b) It converts a documentary case into a character impression. A self-represented appellant advancing a theory about how the decision below was produced reads as grievance rather than proof, whatever the merits.

(c) It opens the reliance contradiction. The Appellant pleads the review finding at Stressor 3(d) and relies on it as the considered conclusion of the Regulator's own delegate. If he also says the decision was produced elsewhere, the answer writes itself: *the Appellant does not accept the independence of the very finding he asks the Commission to adopt.*

(d) It opens two documents that presently sit unread. Putting the review's integrity in issue invites the Respondent to put the Appellant's own characterisations back to him - his email of 15 May 2024 alleging "fraudulent practices", and the Line Manager's account to Human Resources of 17 May 2024. Both are already in the Respondent's disclosure. Neither has any reason to be opened unless the Appellant supplies one.

4. What is actually exposed, and what is not

	At hearing
The document properties	Exposed only if tendered, and objectionable if tendered. They prove where a Word file was profiled. They do not prove authorship, payment, or that the delegate did not decide.
Whether an engagement existed	Not exposed at hearing. Exposed only by a written question answered in writing, or by contract disclosure on data.qld.gov.au.
The identity of hendry8286	Not exposed, and probably anticlimactic. A document management username records who was logged in when a file was saved - in a law firm that is routinely support staff.
Procurement and panel arrangements	Not exposed at hearing. Exposed by contract disclosure or a Right to Information application, neither of which is a hearing process.
The Appellant's own characterisations	Exposed the moment the review's integrity is put in issue, and not before.

5. The one place the Regulator is genuinely exposed

Not the hearing. **Correspondence.** A single neutral question, properly framed, must be answered, declined, or deflected - and each of those is a written record that did not exist before. That is the only mechanism in this matter that compels the Regulator to convert its private knowledge into something on the file.

The question already settled for this purpose, unsent:

"For completeness of the record, please confirm whether any external legal service provider was engaged in connection with review 69983 - as distinct from this appeal - and if so, by which entity and under which panel or procurement arrangement."

It names no firm, alleges nothing, and can be answered without waiving privilege - so a refusal to answer it is harder to justify than a refusal to answer an accusatory one. **In scenario A it is answered in a line. In scenario B it is answered in two. A non-answer is the only outcome that tells the Appellant anything, and it tells him only that the question is worth having asked.**

6. Settlement, from the Regulator's side

A regulator does not settle to avoid procedural embarrassment the way a commercial party might; it has no shareholders and its officers are not personally exposed. The realistic assessment is that this question moves settlement **little on its own.**

What moves settlement is the merits: an admitted seven-hour break, an admitted twenty-five day delay, the employer's own Chief Executive confirming no fatigue framework existed before 30 June 2024, and the Regulator's own delegate having found unreasonable management action and employment a significant contributing factor. **Those are strong and they are unanswerable. The provenance question is neither.**